

Jaydev Singh v. Sri Pankaj Kumar, Exe. Engineer, E.D. Division Dabai & Anr.

Allahabad High Court · Single Judge · 24 October 2017 · Contempt Application (Civil) No. 280 of 2017 · **Contempt consigned to records; 8.2.2017 representation order treated as compliance; if aggrieved, remedy lies elsewhere**

HEADNOTE

Where a consumer brings civil contempt alleging disobedience of a writ that dismissed a billing challenge with liberty to Clause 5.6 of the U.P. Electricity Supply Code, 2005 (the contempt court recording that the correct clause is 6.5) and of a later writ directing a reasoned decision on the resulting representation, and the licensee produces an order deciding that representation and leaving a balance payable, the High Court holds the writ direction complied with, will not entertain the contempt, and leaves the consumer to whatever other remedy lies against the representation order. It does not redecide whether payments were accounted for or whether the remaining demand is correct. The contempt petition is consigned to records.

FACTUAL SUMMARY

Jaydev Singh filed this civil contempt against Pankaj Kumar, Executive Engineer, Electricity Distribution Division, Dabai, District Bulandshahr, alleging disobedience of two writ orders. Writ-C No. 49846 of 2015 was dismissed on 3 September 2015 with liberty to avail Clause 5.6 of the U.P. Electricity Supply Code, 2005 (the contempt court later recorded that the correct clause is 6.5). His case was that he had been paying electricity bills which were not accounted for, that an arbitrary bill of about Rs.1 lakh was raised, and that he had applied for correction under Clause 6.5(b)(ii). Writ-C No. 2428 of 2016 was disposed of on 29 January 2016 directing a reasoned speaking order on that representation.

A compliance order dated 8 February 2017 adjusted Rs.3,994 and recorded that, after amounts already deposited, Rs.97,912 remained payable. The applicant alleged that this did not address whether he had already paid the demand. After notice and a compliance affidavit, the contempt was finally disposed of on 24 October 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of a writ direction to decide a Clause 6.5 representation

HOLDING

Where a writ court has dismissed a billing challenge with liberty to the Supply Code remedy (recited as Clause 5.6, the contempt court recording that the correct clause is 6.5) and a later writ has directed a reasoned speaking order on the consumer's representation, a subsequent order considering and rejecting that representation is compliance. Civil contempt will not be entertained to retry whether payments were accounted for or whether a balance remains payable; if the consumer is aggrieved by that representation order, the remedy lies elsewhere. The contempt petition is consigned to records. ¶ **order of 24.10.2017**

QUALIFIER

Final sitting 24.10.2017 after listings of 20.1.2017, 17.2.2017, 17.8.2017, 4.9.2017, 22.9.2017, 6.10.2017 and 13.10.2017.

FLAG Thin civil-contempt record. Source PDF concatenates eight unnumbered sittings: 20.1.2017 (Suneet Kumar, J.) issuing notice on a prima facie case of violation of the 29.1.2016 and 3.9.2015 writs and granting one more month to comply; 17.2.2017 (Suneet Kumar, J.) taking a compliance affidavit on record; 17.8.2017 (Manoj Misra, J.) listing after opposite-party counsel's absence; 4.9.2017 (Manoj Misra, J.) recording that the applicant invoked Clause 6.5(b)(ii), that the 8.2.2017 order had only directed adjustment of Rs.3,994, and requiring personal presence of Pankaj Kumar, Executive Engineer, Electricity Distribution Khand, Dabai, district Bulandshahr, to explain why charges may not be framed; 22.9.2017 (Surya Prakash Kesarwani, J.) noting personal presence and exempting it till further orders; 6.10.2017 and 13.10.2017 (Ashwani Kumar Mishra, J.) listing; 24.10.2017 (Ashwani Kumar Mishra, J.) consigning the

contempt to records on the 8.2.2017 disposal, which recorded Rs.97,912 remaining payable after adjustment. Coram is the 24.10.2017 disposing judge. Cause title spells the division 'Debai'; the 4.9.2017 order spells it 'Dibai' — recorded as stated. Catalog hits CGRF-2007::6.10, UP-2005::4.9, UP-2005::5.6(b)–(e), UP-2005::6.10, UP-2005::6.5.14, UP-2005::6.5B, UP-2005::8.2 and meter-testing / multi-point tags are not used; this file recites only Clauses 5.6 and 6.5 (with 6.5(b)(ii) in the 4.9.2017 sitting) and decides only compliance. No precedent cited.

PRINCIPLE TAGS

contempt-satisfied-once-directed-representation-is-decided Civil contempt of the 29.1.2016 writ direction to decide the applicant's bill-correction representation by a reasoned speaking order was consigned to records once the 8.2.2017 order considered and rejected that representation (Rs.97,912 remaining payable after adjustment).

¶ [order of 24.10.2017](#)

contempt-of-6.5-writ-does-not-redecide-bill The applicant alleged that the 8.2.2017 order had not addressed whether he had already paid the ~Rs.1 lakh demand and had only adjusted Rs.3,994. The contempt court held the 29.1.2016 direction complied with and refused to redecide the accounting or the remaining demand. ¶ [order of 24.10.2017](#)

clause-6.5-alternate-remedy The 3.9.2015 writ had dismissed the billing challenge with liberty to Clause 5.6 (correct clause 6.5). After the representation was decided on 8.2.2017, the contempt court left any challenge to that order to a remedy elsewhere. ¶ [order of 24.10.2017](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTY HAD WILFULLY DISOBEYED THE 3.9.2015 OR 29.1.2016 WRIT ORDERS

The 20.1.2017 sitting recorded a prima facie case and issued notice; the 4.9.2017 sitting required personal presence to explain why charges may not be framed. The 24.10.2017 order found the writ direction complied with and consigned the petition without a finding of contempt. ¶ [order of 20.1.2017](#), [order of 4.9.2017](#), [order of 24.10.2017](#)

NOT DECIDED — WHETHER THE APPLICANT'S PAYMENTS HAD BEEN ACCOUNTED FOR AND WHETHER RS.97,912 REMAINED PAYABLE UNDER THE 8.2.2017 ORDER

The Court held only that the representation had been considered and rejected; if aggrieved by that order, the applicant's remedy lies elsewhere. ¶ [order of 24.10.2017](#)